conciliatory agency without any statutory backing for its decisions. In view of its growing popularity, there arose a demand for providing a statutory backing to this institution and the awards given by Lok Adalats. Hence, the institution of Lok Adalat has been given statutory status under the Legal Services Authorities Act, 1987.

The Act makes the following provisions relating to the organisation and functioning of the Lok Adalats:

1. The State Legal Services Authority or the District Legal Services Authority or the Supreme Court Legal Services Committee or the High Court Legal Services Committee or the Taluk Legal Services Committee may organise Lok Adalats at such intervals and places and for exercising such jurisdiction and for such areas as it thinks fit.

2. Every Lok Adalat organised for an area shall consist of such number of serving or retired judicial officers and other persons of the area as may be specified by the agency organizing such Lok Adalat. Generally, a Lok Adalat consists of a judicial officer as the chairman and a lawyer (advocate) and a social worker as members.

3. A Lok Adalat shall have jurisdiction to determine and to arrive at a compromise or settlement between the parties to a dispute in respect of:

    1. any case pending before any court; or

    2. any matter which is falling within the jurisdiction of any court and is not brought before such court.

Thus, the Lok Adalat can deal with not only the cases pending before a court but also with the disputes at pre-litigation stage.

But, the Lok Adalat shall have no jurisdiction in respect of any case or matter relating to an offence not compoundable under any law. In other words, the offences which are non-compoundable under any law fall outside the purview of the Lok Adalat.

4. Any case pending before the court can be referred to the Lok Adalat for settlement if:

    1. the parties thereof agree to settle the dispute in the Lok Adalat; or

    2. one of the parties thereof makes an application to the court, for referring the case to the Lok Adalat; or

    3. the court is satisfied that the matter is an appropriate one to be taken cognizance of by the Lok Adalat.

In the case of a pre-litigation dispute, the matter can be referred to the Lok Adalat for settlement by the agency organizing the Lok Adalat, on receipt of an application from any one of the parties to the dispute.

5. The Lok Adalat shall have the same powers as are vested in a Civil Court under the Code of Civil Procedure (1908), while trying a suit in respect of the following matters:

    1. the summoning and enforcing the attendance of any witness examining him/her on oath;